

CHAPTER 18*Local Employment Act, 1960***ARRANGEMENT OF SECTIONS****PART I****POWERS FOR PROVIDING EMPLOYMENT IN
LOCALITIES WITH SPECIAL DANGER OF UNEMPLOYMENT****Section**

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SCHEDULES:

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An Act to make provision to promote employment in localities in England, Scotland and Wales where high and persistent unemployment exists or is threatened, and to make consequential provision as respects the industrial estate companies; to amend subsection (4) of section fourteen of the Town and Country Planning Act, 1947, and subsection (4) of section twelve of the Town and Country Planning (Scotland) Act, 1947 (industrial development certificates); and for purposes connected with the matters aforesaid.

[22nd March, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

POWERS FOR PROVIDING EMPLOYMENT IN LOCALITIES WITH SPECIAL DANGER OF UNEMPLOYMENT

1.—(1) The powers conferred by the six next following sections shall be exercisable, with due regard to the proper diversification of industry, for the purpose of providing for the benefit of any development district employment appropriate (having regard to the circumstances of the district generally and of any particular description of persons therein) to the needs of the district.

Purpose for which Part I powers exercisable, and duration of powers.

(2) In this Act "development district" means any locality in Great Britain in which in the opinion of the Board of Trade (hereinafter referred to as "the Board") a high rate of unemployment exists, or is to be expected within such a period that it is expedient to exercise the said powers, and (in either case) is likely to persist, whether seasonally or generally.

(3) In determining whether and in what manner to exercise their powers under this Part of this Act for the benefit of any development district the Board shall have regard—

- (a) to the relationship between the expenditure involved and the employment likely to be provided; and
- (b) to any consequential effect on employment in other development districts.

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(4) Any reference in the following provisions of this Act to a development district shall have effect as if—

- (a) any county district which in relation to the development district, or to that locality and any other area, is a receiving district within the meaning of the Town Development Act, 1952,
- (b) any burgh or county the council of which are, in relation to the development district, or to that locality and any other area, a receiving authority within the meaning of Part II of the Housing and Town Development (Scotland) Act, 1957, and
- (c) any place so situated that workers living in the development district, or in any such county district, burgh or county as aforesaid, can conveniently work at that place,

formed part of the development district.

(5) In this Part of this Act “the purposes of this Part of this Act” means the purpose for which the powers thereby conferred are exercisable under subsection (1) of this section.

(6) The powers conferred by this Part of this Act shall not be exercisable after the expiration of seven years from the commencement thereof unless Parliament otherwise determines.

**Provision
of premises
and sites.**

2. For the purposes of this Part of this Act the Board shall have power, in order to provide or facilitate the provision of premises in any development district for occupation by undertakings carried on or to be carried on there or for otherwise meeting the requirements of such undertakings (including requirements arising from the needs of persons employed or to be employed therein),—

- (a) to acquire land by agreement or, if so authorised, compulsorily;
- (b) to erect buildings and carry out works on land belonging to the Board;
- (c) by agreement with the persons interested in any other land, to erect buildings and carry out works on the land on such terms (including terms as to repayment of expenditure incurred by the Board) as may be specified in the agreement:

Provided that the Board shall not acquire under this section any buildings other than industrial buildings except for redevelopment or as part of a larger property which in the opinion of the Board would be incomplete without them.

3.—(1) For the purposes of this Part of this Act the Board may with the consent of the Treasury, and after consultation with an advisory committee appointed by the Board (hereinafter referred to as “the advisory committee”), make grants to persons carrying on, or proposing to carry on, undertakings in any development district towards the cost of providing in the district buildings or extensions of buildings to be occupied by the undertakings.

PART I
Building
grants.

(2) The amount of any grant shall be eighty-five per cent. of any excess of the cost, as estimated by the Board, of providing an adequate building or extension of the size required by the applicant for the grant, and reasonably suitable for the purposes for which he requires it, over the amount at which in the opinion of the Board such a building or extension might, if completed at the time of the application for a grant, be expected to be sold on a sale in the open market.

(3) The Board in making a grant under this section shall impose such conditions as they think fit for securing that the building or extension will continue to serve the purposes of this Part of this Act, which may include conditions for repayment of grant in specified circumstances.

(4) The Board may pay to the members of the advisory committee such allowances as the Board may with the consent of the Treasury determine.

4.—(1) Where, in accordance with recommendations of the advisory committee, the Board are satisfied as respects any undertaking carried on, or proposed to be carried on, in a development district,—

General power
to make loans
or grants to
undertakings.

- (a) that it is expedient for the purposes of this Part of this Act to exercise their powers under this section, and
- (b) that there are good prospects of the undertaking ultimately being able to be carried on successfully without further assistance under this section,

the Board may agree with the person carrying on, or proposing to carry on, the undertaking to make loans or grants for the purposes of the undertaking of such amounts and on such terms and conditions as may be recommended by the advisory committee and specified in the agreement, including (in the case of a grant) conditions for repayment in specified circumstances.

(2) In recommending the terms and conditions on which a loan or grant under this section should be made, the advisory committee shall act in accordance with general directions given to them by the Board with the consent of the Treasury.

PART I
Derelict, etc.,
land

5.—(1) The following provisions of this section shall have effect as respects land in a development district where it appears to the Board that by reason of its being derelict, neglected or unsightly, and likely to remain so for a considerable period, it is expedient for the purposes of this Part of this Act that steps should be taken for the purpose of enabling any of the land to be brought into use or of improving the amenities of the neighbourhood.

(2) The Board may acquire the land by agreement or, if so authorised, compulsorily, and may carry out such work on the land as appears to them expedient for enabling any of it to be brought into use or for improving the amenities of the neighbourhood.

(3) The Minister of Housing and Local Government may with the consent of the Treasury make grants, in such manner as appears to him to be requisite for the purposes of this section, to the council of the county, county borough or county district in which the land is situated—

(a) towards the cost of the exercise of any power of the council to acquire the land,

(b) towards the cost of the carrying out by the council of work on the land for enabling any of it to be brought into use, or for improving amenities, as aforesaid.

(4) In the application of the foregoing subsection to Scotland, for the reference to the Minister of Housing and Local Government there shall be substituted a reference to the Secretary of State, and for any reference to the council of the county, county borough or county district in which the land in question is situated there shall be substituted a reference to any local authority, as defined for the purposes of the Local Government (Scotland) Act, 1947, within whose area the land in question is situated.

Payments for
removal and
resettlement
of key workers
and their
dependants.

6.—(1) The following subsection shall have effect for assisting the transfer of persons from employment in an undertaking, wherever carried on, to employment in an undertaking (in this section referred to as “the new undertaking”) which is being established in a development district by way of extension of or in connection with, or by way of transfer of the whole or part of, the first mentioned undertaking or which, having been so established, is being extended in the development district in question.

(2) If on an application in that behalf as respects any person the Minister of Labour is satisfied that it is expedient for the

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purposes of this Part of this Act to exercise his powers under this subsection, and that the exercise thereof will facilitate the establishment or extension of the new undertaking, he may for the purposes of section five of the Employment and Training Act, 1948 (which provides for payments towards the cost of removal and resettlement of workers and their dependants and towards their maintenance and welfare in the course of their removal pending their resettlement) treat—

- (a) the said person's becoming employed in the new undertaking as if it were the obtaining of employment; and
- (b) the said person's ceasing to be employed in the new undertaking as if it were the coming to an end of employment, notwithstanding that he ceases to be so employed in order that he may continue in employment elsewhere.

7.—(1) Where it appears to the Minister in charge of any Government department that adequate provision has not been made for the needs of any development district in respect of a basic service for which that department is responsible, and that it is expedient for the purposes of this Part of this Act that the service should be improved, he may with the consent of the Treasury make grants or loans towards the cost of improving it to such persons and in such manner as appear to him appropriate for the purposes of this Part of this Act.

Financial assistance for improvement of basic services.

(2) In this section the expression "basic service" means the provision of facilities for transport (whether by road, rail, water or air) or of power, lighting, heating, water, or sewerage, and sewage disposal facilities, or of any other service or facility on which the development of the district in question, and in particular of industrial undertakings therein, depends.

(3) The powers conferred by this section are in addition to any other powers of a Minister of the Crown to make grants or loans.

8.—(1) There shall be three corporations, named respectively the Industrial Estates Management Corporation for England, the Industrial Estates Management Corporation for Scotland and the Industrial Estates Management Corporation for Wales, which shall be charged as respects England, Scotland and Wales respectively with the exercise of the functions conferred on them by the following provisions of this Act.

The Industrial Estates Management Corporations.

For the purposes of this subsection Monmouthshire shall be deemed to be part of Wales.

(2) Each of the corporations (hereinafter referred to as a "Management Corporation") shall consist of a chairman and four other members appointed by the Board, and the members

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shall include a person appearing to the Board to have adequate experience of industrial matters, a person appearing to them to have adequate experience in the organisation of workers, and one or more persons appearing to them to have adequate experience in accountancy, building or estate management.

(3) The Board may by regulations made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament make provision with respect to the appointment, tenure of office and removal of members of a Management Corporation, the manner of execution of instruments and of entering into contracts by it or on its behalf, and the proof of documents executed by it or on its behalf.

(4) The provisions of the First Schedule to this Act shall have effect in relation to the Management Corporations.

**Functions of
Management
Corporations.**

9.—(1) It shall be the duty of the Management Corporations to manage land leased to them by the Board or otherwise vested in them under this Act, and in accordance with directions of the Board in that behalf to do anything which is required in order to develop the land by the erection or extension of buildings and the carrying out of works, in order to provide (by letting or otherwise) premises for the occupation of undertakings or for otherwise meeting the requirements of undertakings (including requirements arising from the needs of persons employed or to be employed therein) or in order to provide means of access, services or other facilities for meeting those requirements.

(2) A direction may be given under the foregoing subsection that, except as respects the provision of heat, light, power and water and the disposal of sewage and refuse, a Management Corporation shall not provide services or facilities except with the consent of, and in such manner as may be determined by, the Board.

(3) Where the Board are disposing of their interest in any land of which a Management Corporation is tenant, the Corporation shall comply with any direction of the Board as to the assignment or surrender of the Corporation's interest.

(4) Without prejudice to the foregoing provisions of this section, the Board may give general directions to a Management Corporation as to the exercise of its functions, and in particular as to the location of head or branch offices of the Corporation.

(5) All receipts of a Management Corporation, other than receipts determined by the Corporation in accordance with any directions of the Board to be required to be retained for meeting expenses properly payable out of income, shall be paid over to the Board.

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(6) The expenses of a Management Corporation incurred in the exercise of its functions under the foregoing provisions of this section shall, except in so far as they are met out of receipts of the Corporation, be defrayed by the Board.

(7) A Management Corporation may act as agent—

- (a) for the Board or for any other Management Corporation, in the carrying out of any functions of the Board or Corporation under this Act ;
- (b) for the Development Commissioners in the carrying out of the functions of the Commissioners in relation to applications for advances under Part I of the Development and Road Improvement Funds Act, 1909, and in relation to the framing of schemes with respect to any of the matters for which such advances may be made ;
or
- (c) for the Board in the execution of any work in respect of which such an advance as aforesaid is made to the Board.

10.—(1) A Management Corporation shall keep proper accounts and proper records in relation to the accounts, and shall prepare in respect of each financial year of the Corporation a statement of accounts in such form as the Board, with the consent of the Treasury, may direct, being a form conforming with the best commercial standards.

Accounts of
Management
Corporations
and the
Board.

(2) The accounts of a Management Corporation shall be audited by auditors to be appointed annually by the Board.

(3) No person shall be qualified to be appointed under the foregoing subsection unless he is a member of one or more of the following bodies :—

- (a) the Institute of Chartered Accountants in England and Wales ;
- (b) the Society of Incorporated Accountants ;
- (c) the Institute of Chartered Accountants of Scotland ;
- (d) the Association of Certified and Corporate Accountants ;
- (e) the Institute of Chartered Accountants in Ireland ;
- (f) any other body of accountants established in the United Kingdom and for the time being recognised by the Board for the purposes of paragraph (a) of subsection (1) of section one hundred and sixty-one of the Companies Act, 1948.

(4) So soon as the accounts of a Management Corporation for any financial year have been audited, the Corporation shall send to the Board a report on the discharge of its functions

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during that year and that report shall include a copy of the statement of accounts for that year together with a copy of any report made by the auditors on the accounts.

(5) In the light of the statements furnished under the foregoing subsection the Board shall prepare a statement of accounts, in such form as the Treasury may direct, showing, as respects the activities of the Board in the execution of this Part of this Act and the activities of all the Management Corporations, the financial results for each financial year ; and—

(a) the Board shall on or before the thirtieth day of November in each year transmit to the Comptroller and Auditor General the statement of accounts prepared by the Board for the financial year last ended for examination and certification by him ;

(b) copies of every statement of accounts of the Board under this subsection, together with the report of the Comptroller and Auditor General thereon, shall be laid by the Board before Parliament.

(6) In this section “ financial year ” means the period beginning with the commencement of this Act and ending with the thirty-first day of March, nineteen hundred and sixty-one and each subsequent period of twelve months beginning with the first day of April.

**Parliamentary
disqualification
of members of
Management
Corporations.**

11. Part II of the First Schedule to the House of Commons Disqualification Act, 1957 (which specifies bodies of which the members are disqualified under that Act) and the Part substituted for the said Part II by the Third Schedule to that Act in its application to the Senate and the House of Commons of Northern Ireland shall have effect with the insertion after the entry relating to Industrial Courts of the words—

“ The Industrial Estates Management Corporations constituted by the Local Employment Act, 1960.”

**Industrial
estate
companies.**

12.—(1) This section applies to the companies specified in the Second Schedule to this Act.

(2) Subject to the provisions of the three following subsections, all property, rights and liabilities of any company to which this section applies shall at the commencement of this Act vest in the Management Corporation acting for the part of Great Britain in which the company exercised its functions.

(3) Any charge on assets of a company to which this section applies to secure loans made out of the development fund or the Special Areas Fund or under section two of the Distribution of Industry Act, 1945, and any liability of any such company in

respect of any such loan, is hereby discharged ; and any agreement made between the Board and any such company providing (inter alia) for the financing by the Board of activities of the company is hereby determined.

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(4) Subsection (2) of this section shall not apply to any land which immediately before the commencement of this Act was vested in the company for an estate in fee simple, but (without prejudice to the power of the Board to grant a lease thereof to the Management Corporation) any such land shall at the commencement of this Act vest in the Board.

(5) In the application of this section to Scotland the foregoing subsection shall be omitted and the following additional provisions shall have effect :—

(a) Subsection (2) of this section shall not apply to property of the company consisting of land, but (without prejudice to the power of the Board to grant a lease thereof to the Management Corporation) any such property shall at the commencement of this Act vest in the Board.

(b) For the purposes of any enactment relating to the completion of title to land or heritable rights this section, in so far as it vests property or rights of a company to which this section applies in the Board or a Management Corporation, shall have effect as if it were a general disposition or assignation of such property or rights granted by the company in favour of the Board, or, as the case may be, the Corporation.

(6) The following provisions shall have effect (without prejudice to the generality of subsection (2) of this section) as respects any pension, superannuation or life-assurance scheme or fund in force at the commencement of this Act for the benefit of persons in the employment or former employment of a company to which this section applies :—

(a) anything authorised or required to be done for the purposes of the scheme or fund after the commencement of this Act which apart from this section would fall to be done by, with or to the company or its directors shall be treated as falling to be done by, with or to the Management Corporation acting for the part of Great Britain in which the company exercised its functions ;

(b) for the purposes of the scheme or fund employment after the commencement of this Act by that Corporation shall be treated as equivalent to employment by the company, and employment after the commencement of this Act by the company shall be disregarded ;

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- (c) any requirement to do anything for the said purposes at the registered office of the company shall be treated, in relation to things falling to be done after the commencement of this Act, as a requirement to do that thing at the head office of the said Management Corporation ;

and references in any deed, rules or other document to the company shall be construed as, or as including, references to the said Management Corporation as may be required for giving effect to, or in consequence of, the foregoing paragraphs.

Provisions as to compulsory acquisition of land.

13.—(1) Section one of the Acquisition of Land (Authorisation Procedure) Act, 1946, and section one of the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947 (which establish the procedure for compulsory purchase by local authorities and certain Ministers of land in England and Wales and in Scotland respectively) shall apply in relation to the compulsory purchase of land by the Board under this Part of this Act.

(2) Notwithstanding anything in this Part of this Act, where at the time of publication in accordance with the provisions of the said Act of 1946 or the said Act of 1947 of notice of the preparation of a draft of a compulsory purchase order, land is in use for the purposes of any undertaking, being an undertaking which provides employment which is substantial having regard to the extent of the land used for its purposes and the nature of the undertaking, the Board shall not be authorised to acquire compulsorily the interest of the person carrying on the undertaking.

(3) Any person duly authorised in writing by the Board may, at any reasonable time, enter upon any land for the purpose of surveying it in connection with the exercise of the Board's powers under this Part of this Act to acquire land ; and subsections (4) to (7) and (9) of section one hundred and three of the Town and Country Planning Act, 1947, and subsections (4) to (7) and (9) of section ninety-nine of the Town and Country Planning (Scotland) Act, 1947 (which provide for the giving of notice and the production of evidence of authority to enter, for cases of obstruction, for safeguarding information as to manufacturing processes and trade secrets, for compensation for damage, and for defining powers of survey) shall apply in relation to this subsection as they apply in relation to the said section one hundred and three and the said section ninety-nine respectively.

Provisions as to land, etc., outside development districts.

14.—(1) Where at any time a locality ceases to be a development district, the fact that it is no longer such a district shall not prejudice—

- (a) the completion by the Board of buildings or works begun before that time on land in the locality under section two or section five of this Act ; or

PART I

- (b) the payment of any grant or loan under this Part of this Act offered before that time ; or
- (c) the continued operation of any agreement relating to grants or loans entered into under this Act.

(2) Where land acquired by the Board under, or vested in the Board by, this Part of this Act is situated in a locality which is not a development district, the Board may exercise in relation to the land the following powers, that is to say—

- (a) power to preserve and maintain the land and any buildings or works on it, and to erect buildings and carry out works on it ;
- (b) where there are buildings on the land, power to acquire by agreement other land contiguous or adjacent to it for the purpose of erecting thereon extensions to those buildings or of erecting thereon other buildings to be used with the first-mentioned buildings as part of a single undertaking ;
- (c) power to provide means of access, services and other facilities for meeting the requirements of undertakings carried on or to be carried on on the land (including requirements arising from the needs of persons employed or to be employed therein).

(3) For the avoidance of doubt it is hereby declared that subsection (1) of section nine of this Act applies as well to land outside a development district as to land in such a district, and that the application of subsection (2) of section twelve of this Act is not limited to development districts.

15. In this Part of this Act :—

**Interpretation
of Part I.**

- “ the advisory committee ” means the committee constituted by the Board for the purposes of sections three and four of this Act ;
- “ development district ” has the meaning assigned to it by subsection (2) of section one of this Act ;
- “ Management Corporation ” means any of the corporations constituted under section eight of this Act ;
- “ the purposes of this Part of this Act ” has the meaning assigned to it by subsection (5) of section one of this Act ;
- “ undertaking ” means any trade or business, or any other activity providing employment.

PART II

INDUSTRIAL DEVELOPMENT CERTIFICATES

Amendments
as to
industrial
development
certificates.

16.—(1) Subsection (4) of section fourteen of the Town and Country Planning Act, 1947 (under which development permission for the erection or extension of industrial buildings of prescribed classes cannot be sought unless it is certified by the Board that the development in question can be carried out consistently with the proper distribution of industry) shall have effect subject to the following provisions of this Part of this Act.

(2) In this Part of this Act “the principal enactment” means the said subsection (4).

Determin-
ations under
principal
enactment to
take particular
account of
purposes of
Part I.

17. In considering whether any development for which a certificate under the principal enactment (hereinafter referred to as an “industrial development certificate”) is applied for can be carried out consistently with the proper distribution of industry, the Board shall have particular regard to the need for providing appropriate employment in development districts.

Extension of
principal
enactment
to changes
of use.

18.—(1) The principal enactment shall apply where the development in question is a change of use whereby premises, not being an industrial building of one of the prescribed classes, will become such an industrial building, as it applies where the development is the erection of such an industrial building.

(2) In this Part of this Act “the prescribed classes” means the classes prescribed under the principal enactment as requiring industrial development certificates.

Minor
amendments
as to
industrial
development
certificates.

19.—(1) An industrial development certificate shall not be required for the extension of an industrial building if the extension, taken by itself, would not be an industrial building of one of the prescribed classes, but (subject to the provisions of this section) shall be required for the extension of any building if the extension, taken by itself, would be such an industrial building.

(2) Paragraph (a) of the proviso to the principal enactment (under which an industrial development certificate is not required for a building or extension not exceeding a specified size) shall cease to have effect, but such a certificate shall not be required if the industrial floor space to be created by the development in question together with any other industrial floor space created or to be created by any other development relating to the same building or another building in the same group—

(a) which has been carried out, or

(b) for which permission under Part III of the Town and Country Planning Act, 1947, has been given,

PART II

since the commencement of this Act does not exceed five thousand square feet, excluding, where an industrial development certificate has been issued in respect of any such other development, any floor space created or to be created by that development or by a development carried out, or for which permission has been given as aforesaid, before the issue of the certificate.

(3) In this section "industrial floor space" means floor space comprised in an industrial building or industrial buildings of any of the prescribed classes, and "group" means a group of contiguous or adjacent buildings used as parts of a single undertaking; and the reference to development relating to a building is a reference to its erection, extension, alteration or re-erection or to a change of use of the whole or a part of it.

(4) Nothing in subsection (1) of section eighteen of the Town and Country Planning Act, 1947, shall be construed as requiring an industrial development certificate on an application for permission for the retention on land of an industrial building or the continuance of any use of land.

20. In the application of this Part of this Act to Scotland, for references to Part III, subsection (4) of section fourteen and subsection (1) of section eighteen of the Town and Country Planning Act, 1947, there shall be substituted references respectively to Part II, subsection (4) of section twelve and subsection (1) of section sixteen of the Town and Country Planning (Scotland) Act, 1947.

Application of
Part II to
Scotland.

PART III

GENERAL AND SUPPLEMENTARY

21. In this Act and in the Town and Country Planning Act, 1947, and the Town and Country Planning (Scotland) Act, 1947, "industrial building" means a building used or designed for use for the carrying on of any process for or incidental to any of the following purposes, that is to say,—

Meaning of
"industrial
building."

- (a) the making of any article or of part of any article, or
- (b) the altering, repairing, ornamenting, finishing, cleaning, washing, freezing, packing or canning, or adapting for sale, or breaking up or demolition, of any article, or
- (c) without prejudice to the foregoing paragraphs, the getting, dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine,

being a process carried on in the course of a trade or business, and for the purposes of this definition "building" includes a part of a building and "article" means an article of any description, including a ship or vessel.

PART III
Saving for
local
authorities'
building
powers.

22.—(1) In subsection (1) of section twenty of the Town and Country Planning Act, 1944 (which as set out in the Eleventh Schedule to the Town and Country Planning Act, 1947, empowers local authorities to erect buildings and carry out works where the power to do so does not exist by virtue of, and cannot be conferred under, an enactment other than Part IV of the Town and Country Planning Act, 1947) the references to an enactment other than the said Part IV shall not include references to section two, five or fourteen of this Act.

(2) In the application of the foregoing subsection to Scotland—

(a) for the reference to subsection (1) of section twenty of the Town and Country Planning Act, 1944, there shall be substituted a reference to subsection (1) of section nineteen of the Town and Country Planning (Scotland) Act, 1945; and

(b) for references to Part IV of the Town and Country Planning Act, 1947, and to the Eleventh Schedule to that Act there shall be substituted references respectively to Part III of the Town and Country Planning (Scotland) Act, 1947, and to the Eleventh Schedule to that Act.

Annual report
of Board of
Trade.

23. As soon as may be after the thirty-first day of March in the year nineteen hundred and sixty-one and each subsequent year the Board shall prepare a report on the discharge of its functions under this Act and under subsection (4) of section fourteen of the Town and Country Planning Act, 1947, and subsection (4) of section twelve of the Town and Country Planning (Scotland) Act, 1947, and shall lay the report before Parliament.

Exercise of
powers of
Board of
Trade.

24. Anything required or authorised by or under this Act to be done by, to or before the Board may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board or any person authorised in that behalf by the President.

Expenses and
receipts.

25. Any expenses incurred by any Government department under this Act shall be defrayed out of moneys provided by Parliament, and any receipts of any Government department under this Act shall be paid into the Exchequer.

Consequential
amendments
of Acts.

26.—(1) In section one hundred and nineteen of the Town and Country Planning Act, 1947, and in section one hundred and thirteen of the Town and Country Planning (Scotland) Act, 1947, in the definition of "industrial building" in subsection (1), for the words "Distribution of Industry Act, 1945" there shall be substituted the words "Local Employment Act, 1960".

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(2) Section sixty of the Landlord and Tenant Act, 1954 (which makes special provision as to premises provided under the Distribution of Industry Acts) shall be amended by the substitution—

- (a) for the references in subsections (1) and (2) of that section to premises provided as therein mentioned of references to premises of which the Board or a Management Corporation are the landlord and which are situated in a development district, and
- (b) for the references therein to the objects of the Distribution of Industry Acts, 1945 and 1950, of references to the purposes of Part I of this Act.

(3) In subsection (1) of section fifty-nine of the Town and Country Planning Act, 1954, and in subsection (1) of section fifty-nine of the Town and Country Planning (Scotland) Act, 1954 (which relate to applications in respect of which an industrial development certificate is refused, but on which planning permission would in any event have been refused) the words “by the erection thereon of an industrial building” shall cease to have effect.

27.—(1) Where in the case of any undertaking a loan has been made under this Act, section four of the Distribution of Industry Act, 1945, or that section as extended by the Distribution of Industry (Industrial Finance) Act, 1958, and the Board are satisfied, in accordance with recommendations of the committee constituted for the purposes of sections three and four of this Act, that with a view to enabling all or part of the moneys lent to be recovered it is expedient to provide further financial assistance for the purposes of the undertaking, the Board may provide such further assistance of such amount and on such terms and conditions as may be recommended by the committee.

Additional powers for safeguarding loans.

(2) Subsection (2) of section four of this Act shall apply in relation to recommendations under this section.

28.—(1) The enactments specified in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule; and the following provisions of this section shall be without prejudice to section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

Repeals and transitional provisions.

(2) The Board shall have the like powers under Part I of this Act in relation to land acquired by them under or vested in them by the Distribution of Industry Acts, 1945 to 1958, as they have in relation to land acquired by them under or vested in them by the said Part I.

(3) The continued operation of any agreement relating to loans or grants entered into under the Distribution of Industry

PART III Acts, 1945 to 1958, or the Special Areas (Development and Improvement) Acts, 1934 and 1937, shall not be affected by the repeal of the said Acts of 1945 to 1958 ; but—

(a) in the case of any agreement to make loans or grants entered into by the Treasury under section four of the Distribution of Industry Act, 1945, or that section as extended by the Distribution of Industry (Industrial Finance) Act, 1958, the Board shall be substituted for the Treasury ; and

(b) in the case of any agreement entered into by the Board with a local authority under subsection (3) of section five of the said Act of 1945 (which relates to grants for dealing with derelict land), the Minister of Housing and Local Government shall be substituted for the Board.

(4) Where before the commencement of this Act a Minister of the Crown has paid any instalment of a grant under section three of the Distribution of Industry Act, 1945, the repeal of the said section three by this section shall be without prejudice to the payment by him of further instalments of the grant in pursuance of arrangements made by him before the said commencement.

(5) Any security vested immediately before the commencement of this Act in the Solicitor for the affairs of Her Majesty's Treasury, being a security for the repayment of any loan made under section four of the Distribution of Industry Act, 1945, or that section as extended by the Distribution of Industry (Industrial Finance) Act, 1958, shall at the commencement of this Act vest in the Board ; and section sixty-six of the Harbours and Passing Tolls, &c. Act, 1861 (which makes provision where lands are vested in the Board) shall have effect as if the expression "lands" in that section included any security vested by this section.

(6) Where the Board have agreed to make to any housing association grants under subsection (2) of section three of the Distribution of Industry Act, 1950, to further the provision of any dwellings, the repeal of the said Act of 1950 by this section shall be without prejudice to the continued payment of the grant in respect of such of the dwellings as have been provided before the commencement of this Act.

(7) Any legal proceedings (including applications to any authority) relating to property, rights or liabilities transferred to a Management Corporation or Government department by virtue of section twelve of this Act or of this section may be continued by or against the Corporation or department, as the case may be, to the exclusion of the company or Government department from whom the property, rights or liabilities were transferred.

PART III

(8) In the application of this section to Scotland, for the reference in subsection (3) to the Minister of Housing and Local Government there shall be substituted a reference to the Secretary of State, and the following provisions shall have effect for the purposes of subsections (3) and (5), that is to say:—

- (a) Where any agreement to which paragraph (a) of subsection (3) of this section applies provides that the person to whom the loan or grant is made shall if required to do so grant such security as may be specified in the agreement in favour of the Solicitor for the affairs of Her Majesty's Treasury, but the person has not before the commencement of this Act been so required, the Board shall be substituted for the said Solicitor.
- (b) In relation to any heritable security which vests in the Board by virtue of subsection (5) of this section, paragraph (b) of subsection (5) of section twelve of this Act shall have effect, subject to the necessary modifications, as it has effect in relation to the property and rights therein mentioned.

29.—(1) This Act may be cited as the Local Employment Act, 1960. Short title and commencement.

(2) This Act shall come into operation on such day as the Board may by order made by statutory instrument appoint.

SCHEDULES

FIRST SCHEDULE

Section 8.

PROVISIONS AS TO INDUSTRIAL ESTATES MANAGEMENT CORPORATIONS

1. Each Management Corporation shall be a body corporate by the name given to it by subsection (1) of section eight of this Act, with perpetual succession and a common seal and power to hold land without licence in mortmain.

2. A Management Corporation—

- (a) shall pay to each of its members, in respect of his office as such, such remuneration (whether by way of salary or fees) and such allowances as the Board may with the approval of the Treasury determine in the case of that member; and
- (b) in the case of any such member as the Board may with the approval of the Treasury determine, shall pay such pension or make such payments towards the provision of pensions to or in respect of him as the Board may with the approval of the Treasury determine.

1ST SCH.

3. The Board shall, as soon as possible after the commencement of this Act, lay before each House of Parliament a statement of the remuneration and allowances that are or will be payable to members of the Management Corporations under the foregoing paragraph; and, if any subsequent determination by the Board under that paragraph involves any departure from the terms of the said statement or if a determination by the Board under that paragraph relates to the payment of, or to payments towards the provision of, a pension to or in respect of any member of a Management Corporation, the Board shall, as soon as possible after the determination, lay a statement thereof before each House of Parliament.

4. A Management Corporation may, subject to any limit of numbers which may be determined by the Board, employ such officers and servants as appear to the corporation expedient for the exercise of its functions.

5. A Management Corporation shall—

- (a) pay to its officers and servants such remuneration as the Corporation may, subject to any directions of the Board, determine; and
- (b) as regards any officer or servant in whose case it may be determined by the Corporation with the approval of the Board so to do, pay to or in respect of him such pension, or provide and maintain for him such pension scheme (whether contributory or not) as may be so determined.

6. Where any officer or servant of a Management Corporation, being a participant in any pension scheme applicable to his office or employment, becomes a member of the Corporation, he may be treated for the purposes of the pension scheme as if his service as a member of the Corporation were service as an officer or servant of the Corporation, and his rights under the scheme shall not be affected by any provision of this Act which requires that the pensions or payments towards the provision of pensions to be paid or made in the case of members of a Management Corporation shall be determined by the Board with the approval of the Treasury.

7. The procedure of a Management Corporation (including quorum) shall be such as the Corporation may determine.

8. No act of a Management Corporation shall be invalid by reason only of any vacancy among the members or any defect in the appointment of a member.

9. In this Schedule “pension” in relation to a person means a pension, whether contributory or not, of any kind whatsoever payable to or in respect of him, and includes a gratuity so payable and a return of contributions, with or without interest thereon or any other addition thereto.

10. In relation to land in Scotland paragraph 1 of this Schedule shall have effect with the omission of the words “without licence in mortmain”.

SECOND SCHEDULE

Section 12.

THE INDUSTRIAL ESTATE COMPANIES

North Eastern Trading Estates Limited.

Wales and Monmouthshire Industrial Estates Limited.

The West Cumberland Industrial Development Company Limited.

Scottish Industrial Estates Limited.

North Western Industrial Estates Limited.

THIRD SCHEDULE

Section 28.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
8 & 9 Geo. 6. c. 36.	The Distribution of Industry Act, 1945.	The whole Act.
10 & 11 Geo. 6. c. 51.	The Town and Country Planning Act, 1947.	In section fourteen, in subsection (4), proviso (a).
10 & 11 Geo. 6. c. 53.	The Town and Country Planning (Scotland) Act, 1947.	In section twelve, in subsection (4), proviso (a).
14 Geo. 6. c. 8.	The Distribution of Industry Act, 1950.	The whole Act.
2 & 3 Eliz. 2. c. 72.	The Town and Country Planning Act, 1954.	In section fifty-nine, in subsection (1), the words " by the erection thereon of an industrial building ".
2 & 3 Eliz. 2. c. 73.	The Town and Country Planning (Scotland) Act, 1954.	In section fifty-nine, in subsection (1), the words " by the erection thereon of an industrial building ".
5 & 6 Eliz. 2. c. 20.	The House of Commons Disqualification Act, 1957.	In the First Schedule, in Part III, and in the Third Schedule, in the Part substituted for the said Part III, the entries relating to the office of director appointed by the Board of certain trading and industrial estate companies.
5 & 6 Eliz. 2. c. 38.	The Housing and Town Development (Scotland) Act, 1957.	Section twenty-five.
6 & 7 Eliz. 2. c. 41.	The Distribution of Industry (Industrial Finance) Act, 1958.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Harbours and Passing Tolls, &c., Act, 1861 ...	24 & 25 Vict. c. 47.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Development and Road Improvement Funds Act, 1909	9 Edw. 7. c. 47.
Special Areas (Development and Improvement) Act, 1934	25 & 26 Geo. 5. c. 1.
Town and Country Planning Act, 1944	7 & 8 Geo. 6. c. 47.
Town and Country Planning (Scotland) Act, 1945 ...	8 & 9 Geo. 6. c. 33.
Distribution of Industry Act, 1945	8 & 9 Geo. 6. c. 36.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Town and Country Planning Act, 1947	10 & 11 Geo. 6. c. 51.
Town and Country Planning (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 53.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Employment and Training Act, 1948	11 & 12 Geo. 6. c. 46.
Distribution of Industry Act, 1950	14 Geo. 6. c. 8.
Town Development Act, 1952	15 & 16 Geo. 6. c. 54.
Landlord and Tenant Act, 1954	2 & 3 Eliz. 2. c. 56.
Town and Country Planning Act, 1954	2 & 3 Eliz. 2. c. 72.
Town and Country Planning (Scotland) Act, 1954 ...	2 & 3 Eliz. 2. c. 73.
House of Commons Disqualification Act, 1957 ...	5 & 6 Eliz. 2. c. 20.
Housing and Town Development (Scotland) Act, 1957	5 & 6 Eliz. 2. c. 38.
Distribution of Industry (Industrial Finance) Act, 1958	6 & 7 Eliz. 2. c. 41.

CHAPTER 19

European Free Trade Association Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Rules for determining origin and place of consignment of goods.
2. Provisions as to Convention rates of duty where drawback etc. allowable.
3. Verification of origin of exported goods.
4. Penalties for untrue documents of origin for goods exported.
5. Repeal of Dyestuffs (Import Regulation) Acts.
6. Application of Act to subsequent agreements with Convention countries.
7. Regulations and Orders.
8. Exercise of powers of Board of Trade.
9. Expenses.
10. The Convention area; and Convention area origin.
11. General interpretation.
12. Short title and extent.